

SEPARATE OPINION OF JONKHEER VAN EYSINGA.

[*Translation.*]

The undersigned is unable to concur in the judgment of the Court and submits the following observations.

*

Article 1 of the Special Agreement of April 13th, 1934, requests the Permanent Court of International Justice to give judgment, in the first place, on the following question :

“Having regard to all the circumstances of the case, were the above-mentioned measures complained of by the Government of the United Kingdom in conflict with the international obligations of the Belgian Government towards the Government of the United Kingdom ?”

The Special Agreement does not state what is the source of the international obligations of the Belgian Government towards the Government of the United Kingdom, with which the impugned Belgian measures are alleged to conflict. But it is shown by the written and oral proceedings that the two Governments are agreed that, apart from unwritten customary international law (with which the present dissenting opinion does not deal), the only source in question is the Convention signed at Saint-Germain on September 10th, 1919, by the United States of America, Belgium, the British Empire, France, Italy, Japan and Portugal. The instruments of ratification of that Convention by those States were deposited in the archives of the French Government, that of the United States quite recently on October 29th, 1934.

The first question that arises is whether the signatory States of the Convention of Saint-Germain were really entitled to consider the General Act of Berlin of February 26th, 1885 (except for the stipulations of its first Article, which are embodied in Article 1 of the Convention of Saint-Germain), and the Declaration of Brussels of July 2nd, 1890, as abolished *inter se*, and to replace these instruments *inter se* by the articles of the Convention of Saint-Germain (Art. 13).

In regard to this question, the following points should be noted.

The General Act of Berlin of February 26th, 1885, came into force as between thirteen contracting Powers; it was drawn up at a time when several of them were engaged in the colonization of Central Africa—which at that period was still, in part,

terra nullius—a situation that might lead to unfortunate international complications. It was mainly with the intention of regulating these colonizing efforts that Prince von Bismarck, in close co-operation with the French Government, convened the Berlin Conference. The result of the Conference was to invest the Central African region, defined in Article 1 of the General Act, with an international statute which greatly diminished the danger of international disputes. This eminently pacific object was attained by instituting for Central Africa a highly internationalized régime, which diminished the importance of the question whether a given part of the continent belonged to this or that country. Thus, Chapter I of the General Act definitely lays down the principle of the "open door": The freedom of trade which it establishes does not only cover what commercial treaties of that period understood by that term—namely the forbidding of import and export prohibitions—but also forbids the imposition of any import or transit duties; moreover, it provides an extremely liberal régime for all foreigners, no matter of what nationality. As regards the exercise of fluvial navigation, the General Act contains—in addition to Article 2 comprising general provisions—a special act, constituting its fourth Chapter, concerning the navigation of the Congo; this Navigation Act provides a more internationalized régime than any others that exist; the signatory Powers considered that the provisions of its 13th Article were so important that they recognized them as henceforward a part of public international law. The Niger, though situated outside the part of Central Africa defined in Article 1, was endowed with a similar Navigation Act (Chapter V). The VIth Chapter of the General Act attempts to bring order into the efforts at colonization by prescribing rules for the occupation of territories lying outside the possessions of a contracting Power, even where such territories are situated in parts of Africa other than the Congo Basin. As regards Chapter II, it contains the germ of the General Act of the Brussels Conference of 1890 concerning the African slave trade, and recognizes the duty of protecting the natives in the whole Congo Basin. Chapter III is in some respects the most interesting, since it pushes the idea of internationalization as far as neutralization: for it is provided that the highly internationalized and eminently pacific régime of the Congo Basin may continue, even in time of war, whereas this is imperatively enjoined in the Navigation Acts both of the Niger and the Congo (Art. 25 and 33).

It will be seen from this survey that the Berlin Act presents a case in which a large number of States, which were territorially

or otherwise interested in a vast region, endowed it with a highly internationalized statute, or rather a constitution established by treaty, by means of which the interests of peace, those of "all nations" as well as those of the natives, appeared to be most satisfactorily guaranteed. Similar internationalized régimes have been established also in other parts of the world.

The General Act of Berlin contains no clause providing for its denunciation; nor does it contain any provision authorizing the contracting States to conclude private arrangements separately among themselves, even supposing that such arrangements were not repugnant to the provisions of the General Act—a provision which is often found in collective conventions, for instance in Article 15 of the International Convention for the Protection of Industrial Property, signed at Paris on May 3rd, 1883.

On the other hand, the Powers assembled at Berlin considered that the treaty régime of the Congo Basin would have to be revised from time to time. In regard to that point, the report signed by Baron de Courcel, the French Plenipotentiary, and Baron Lambermont, the Belgian Plenipotentiary, contains the following observation (de Martens, *N. R. G.*, 2nd Series, p. 401):

"The situation being as it is in the regions of the Congo, it seems difficult and perhaps premature to make provision for everything and to regulate everything in advance.

By making any amendment of the acts of the Conference dependent upon an agreement between the Powers arrived at in the light of experience, due regard will be paid to the requirements of the future and to the permanence of your decisions."

In this connection, the following provision (Art. 36) was inserted in Chapter VII of the Act:

"The signatory Powers of the present General Act reserve to themselves to introduce into it subsequently, and by common accord, such modifications and improvements as experience may show to be expedient."

The legislative significance of the Article therefore resides in the fact that the States which together had established the international statute of Central Africa had made provision, as an integral part of their union, for periodical revision thereof. By doing this, the Article however expressly provides at the same time that the Act of Berlin may only be modified with the consent of all contracting Parties. This precludes any modification by some only of the contracting Parties, and moreover such modification would not be appropriate in the case of a convention bestowing an international statute upon a vast area. The General Act of Berlin does not create a

number of contractual relations between a number of States, relations which may be replaced as regards some of these States by other contractual relations; it does not constitute a *jus dispositivum*, but it provides the Congo Basin with a régime, a statute, a constitution. This régime, which forms an indivisible whole, may be modified, but for this the agreement of all contracting Powers is required. An inextricable legal tangle would result if, for instance, it were held that the régime of neutralization provided for in Article 11 of the General Act of Berlin might be in force for some contracting Powers while it had ceased to operate for certain others.

It must not be forgotten that Article 36 of the Act of Berlin merely repeats, superfluously, the "essential principle of international law" formulated—not for the first time—by the Protocol of London of 1871. It is by agreement, that is to say upon the consent of all Powers parties to the General Act of Berlin, that that instrument may be modified. But this would have been the case even if Article 36 had not existed.

It is interesting to observe with what constitutional nicety the General Act of Berlin was modified at the Brussels Slavery Conference (1890). One State which was not a party to the General Act of Berlin was present at this Conference, namely Persia. That country could take part in the General Act upon the slave trade, but not in the revision of the General Act of Berlin, to which it had not adhered. For this reason, the Declaration of Brussels modifying the General Act of Berlin runs as follows:

"The Powers assembled in Conference at Brussels, who have ratified the General Act of Berlin of February 26th, 1885, or who have acceded thereto,

Have agreed to make the following Declaration:

The ratifications of the present Declaration shall be exchanged at the same time as those of the General Act of this day."

In 1919, some of the Powers parties to the General Act of Berlin, including the two States which have submitted the present case to the Court, acted in an entirely different manner. Without inviting the other contracting Parties to take part in the Conference which they held, they thought themselves entitled at that Conference to modify the General Act of Berlin *inter se*. It seems clear that in proceeding thus they acted contrary not only to an essential principle of international law, but also

to Article 36 of the General Act of Berlin, which expressly provides that modifications may only be made in the General Act by agreement. This is a legal situation of such importance that a tribunal should reckon with it *ex officio*. The only convention which the Court could apply is the Act of Berlin. If the Court had done so, it would have applied the Act of Berlin alone. It should be observed here that the validity of the Convention of Saint-Germain cannot, as the Court seems to hold, be dependent on the question whether or not any government has disputed its validity; moreover, the Court has not gone into this question. In applying the Act of Berlin, the Court's task would have been singularly facilitated by the fact that, with regard to the legal relations in issue in the Chinn case, Articles 3 and 5 of the Convention of Saint-Germain simply reaffirm Articles 5 and 13 of the Act of Berlin.

In making the foregoing observations, the undersigned has not lost sight of the fact that, up to a certain point, the parties to a case may specify in the Special Agreement the rules of law which the Court to which they have recourse is to apply. Article 38 of the Court's Statute provides for this amongst other things when it says: "The Court shall apply international conventions, whether general or particular, establishing rules expressly recognized by the contesting States." Although the Special Agreement in the present case is silent on the question what rules of law the Court is to apply, and although consequently it does not constitute a special convention specifying rules expressly accepted by Great Britain and Belgium, the question might perhaps be raised whether, since the two Parties clearly indicated both in the written and oral proceedings that they considered themselves bound by the Convention of Saint-Germain, it would not follow that this Convention constitutes for them an immediate source of special treaty law applicable in this case.

Even adopting this line of reasoning, it seems difficult to hold that the two Parties could adduce the Convention of Saint-Germain.

If, in a given case, no international law exists or if the law is uncertain, it is comprehensible that the parties, in resorting to an international tribunal, should at the same time determine the law to be applied. The classic example of this is the *Alabama* case between the United States of America and Great Britain; at the time, i.e. after the civil war, the law of neutrality which, in the contention of the United States, had been violated by Great Britain, was very uncertain. In a Special Agreement signed on May 8th, 1871, the two Parties therefore drew up the three famous Washington rules which were to be applied by the tribunal of arbitration provided for in the same

Special Agreement. These are the rules which subsequently were codified by the thirteenth Convention of the Second Peace Conference in 1907 concerning the rights and duties of neutral Powers in maritime war.

The case before the Court presents an entirely different aspect. In this case—apart from the arguments which the United Kingdom seeks to draw from customary unwritten law, with which arguments the present opinion, as already stated, does not deal—the international obligations of Belgium which the Court has to determine are to be found in a collective treaty, the Treaty of Berlin, modified in 1890 at Brussels, which Treaty can only be modified by common accord. It seems clear that the two Parties have no right to change this Treaty basis by means of statements made in the course of legal proceedings. For it is impossible to admit that what a portion of the group of States which were parties to the General Act of Berlin could not lawfully do, namely modify that Act, two only of these States could do and not even by means of a convention (the Special Agreement), but simply by means of statements made in the written memorials and oral pleadings of an action at law.

The undersigned cannot refrain in this connection from expressing his regret that the Court should frequently be called upon to give decisions in regard to collective conventions concluded after the Great War, without having at its disposal the records of the meetings at which these conventions were elaborated, these records being kept secret. The resulting lack of information has once more made itself felt in the present case.

*

The British subject, Mr. Chinn, carried on with his own ships in the Congo the business of transporting goods, and he also had a shipyard at Leopoldville. At the time of the economic crisis which also made itself felt in the Congo Basin, the Belgian Government, by a decision taken on June 20th, 1931, and several times extended, reduced to one franc per ton the downstream transport tariff for nearly all products of the *Union nationale des Transports fluviaux* (Unatra), a Company under the effective control of the Government. The British Government contends that, as a result of this drastic reduction which practically brought to zero Unatra's charge for the transport of goods downstream, traffic became concentrated in the hands of Unatra to such an extent that that Company found itself in possession of a virtual monopoly which rendered it commercially impossible for Mr. Chinn to carry on his business; in addition to Unatra, a few concerns

were able to carry on, that is due to the fact that they transported their own produce, whereas, apart from Unatra, Mr. Chinn's concern was the only one which exclusively carried goods of others.

The Government of the United Kingdom considers that it follows from these facts that the measure taken by the Belgian Government is inconsistent with the freedom of navigation and commercial equality to which Mr. Chinn was entitled under the Convention of Saint-Germain. Alternatively, the Government of the United Kingdom maintains that the Belgian Government has by this measure, which confers a virtual monopoly upon the Belgian Company, been guilty, contrary to the terms of the same Convention, of discrimination to the detriment of the only concern which, like Unatra, exclusively carried goods of others.

The Belgian Government's answer is that, in taking the measure drastically reducing transport rates in regard to Unatra, a Company under its effective control, it was keeping strictly within the sphere of the *management of the national fluvial shipping industry*, and contends that this is something quite distinct from the sphere of the *régime of navigation* within which the exercise of navigation falls. As regards the management of the national fluvial shipping industry, the sovereignty of riparian States remains intact and cannot be affected either by the freedom of navigation prescribed by the Convention of Saint-Germain—which belongs to quite a different sphere of action—or by the equality of treatment in commercial or other matters laid down by the same Convention. The latter standpoint emerges from the reply made by the Belgian Agent to the question put to him at the beginning of the hearing on October 26th, 1934.

The present dissenting opinion will deal in the first place with the question of equality of treatment.

*

At the first meeting (Nov. 15th, 1884) of the Conference of Berlin, Sir Edward Malet, the British Plenipotentiary, after observing that in using the term "free trade" in the Basin of the Congo, the intention was to provide traders of all countries with a guarantee that no import duties or transit dues would be levied and that the goods would only be subject to reasonable taxes designed solely to cover administrative requirements, went on to say:

[*Translation.*] "But I think that the Conference after mature reflection upon the question will recognize the necessity of making more detailed provision for the absolute equality of treatment of the

subjects of all the Powers, with regard to direct and indirect duties, and taxes, residence, freedom to engage in trade and to travel, the use of roads and railways, coasting traffic, and religious freedom." (De Martens, p. 205.)

These words expressed the desire for absolute equality of treatment for the subjects of all nations, whether nationals or foreigners, in the Congo Basin. Moreover, this equality had already been provided for in the second sentence of paragraph 5 of the draft declaration concerning free trade, submitted to the Conference by the German Government and on which the first part of the Act of Berlin was based; this sentence ran as follows: "Foreigners shall enjoy the same treatment and rights as nationals without any differentiation." (De Martens, p. 208.) The British Plenipotentiary meant to suggest that the short sentence in the German draft should be expanded and defined.

That is indeed what was done by the Committee instructed to examine the declaration on freedom of trade; the Chairman of that Committee was Baron de Courcel, and the Rapporteur was Baron Lambermont. In regard to the matter in question, the report speaks as follows: "Paragraph 2 of the same Article [Article 5 of the General Act] relates to the rights of foreigners. In order to develop trade, it does not suffice to open the ports or to lower customs barriers. There can be no trade without traders. If one desires to attract trade to distant and little-known countries, one must give the traders guarantees for the things that most vitally interest them—their persons, their goods, the acquisition of property, inheritances, the exercise of professions. That is the aim of Article V. It does not only protect traders; it covers all foreigners and the pioneers both of civilization and of commerce. It has met with the unanimous approval of the Committee." (De Martens, p. 254.)

The result of this unanimous support was paragraph 2 of Article V of the Berlin Act, which provides that:

"Foreigners, without distinction, shall enjoy protection of their persons and property, as well as the right of acquiring and transferring movable and immovable possessions; and national rights and treatment in the exercise of their professions."

It appears clear that the stipulation that "foreigners, without distinction, shall enjoy national rights and treatment" and "the absolute equality of treatment of the subjects of all the Powers" desired by the British Plenipotentiary are one and the same thing. In fact, the General Act of Berlin prescribes complete equality of individual treatment for all persons in the Congo

Basin, and any inequality of treatment is a contravention of the Berlin Act.

Did the authors of Article 3 of the Convention of Saint-Germain desire to modify that situation? Certainly they desired to limit the category of persons who were to benefit by equality of treatment; whereas the General Act of Berlin covers the nationals of any country whatever, Article 3 of the Convention of Saint-Germain only applies to the nationals of certain States. But there is nothing to show that, within this restricted group, individual equality does not continue to be the law. This individual equality, which is such a characteristic feature of the work accomplished at Berlin—the result of which was to internationalize the legal régime of the Congo Basin in so many respects—was not modified by the Convention of Saint-Germain. That is shown by several articles of the latter instrument. Thus, for example, while Article 1 *maintains* complete commercial equality between the nationals of all the contracting States, it provides equality of treatment as between all these individuals regarded as a group. The same observation applies to paragraph 2 of Article 5, which provides that craft belonging to the nationals of any of the contracting States shall be treated, in all respects, on a footing of complete equality. Could it be otherwise, in the case of Article 3, the history of which at Berlin—as has just been recalled—shows so manifestly the intention of according absolute equality of treatment to all persons engaged in professions in the Congo Basin?

It results from the foregoing that the inequality of treatment created by the Belgian Government's measure of June 20th, 1931, in favour of Unatra and to the detriment of the only other enterprise in the Congo which exclusively transported the goods of others, namely, Mr. Chinn's business, is in conflict with the international obligations of the Belgian Government towards the United Kingdom.

*

As regards the relation between the Belgian Government's measure of June 20th, 1931, and the freedom of fluvial navigation prescribed by Article 5 of the Convention of Saint-Germain, the Belgian Government contends, as has been observed, that this measure, operating within the sphere of the management of the national fluvial industry—a field in which the sovereignty of the riparian State remains intact—could never be in conflict with freedom of navigation, a thing which belongs to a totally different sphere.

The question arises whether this distinction between the two separate spheres is not rather arbitrary; it certainly has no foundation in fluvial international law, as it has evolved since

the Congress of Vienna in 1815. It will be remembered that Articles 108 to 116 of the Final Act of Vienna constitute the basis of the General Act of Berlin of 1885 (see the Preamble to that Act, Nos. 4 and 5), and that the Belgian Government has repeatedly alluded to those Articles of the Vienna Congress during the present case.

In 1814, when Talleyrand, for it was probably he, proposed the clause which became Article V of the first Peace Treaties of Paris—those of May 30th, 1814—an Article which thus inaugurated the general international regulation of navigation on international rivers—he was regarding fluvial navigation, not as “an object in itself”, or as a “self-sufficing principle”, as the Belgian Government contends (pleadings of Oct. 24th, afternoon), but as an element of international trade. It suffices to read Article V of the Treaties of Peace of 1814, which is worded as follows :

“The navigation of the Rhine, from the point where it becomes navigable unto the sea, and *vice versa*, shall be free, so that it can be interdicted to no one: —and at the future Congress, attention shall be paid to the establishment of the principles according to which the Duties to be raised by the States bordering on the Rhine may be regulated, in the mode the most impartial, and the most favourable to the commerce of all Nations.

The future Congress, with a view to facilitate the communication between Nations, and continually to render them less strangers to each other, shall likewise examine and determine in what manner the above provisions can be extended to other Rivers which, in their navigable course, separate or traverse different States.”

Indeed, from the very outset, freedom of fluvial navigation has included both the nautical aspect, in the sense of freedom of movement and the commercial aspect; it is seen from the text quoted above that Article V of the Treaties of Peace of 1814 intends that the *free navigation of the Rhine* and of other international rivers should be regulated by the Congress that was to meet at Vienna in such a way that navigation duties—which would primarily consist of *duties on goods* carried on the waterway, as laid down at that time, by Article 99 of the Convention concerning the Rhine Tolls of 1804—should be fixed in the manner most favourable to the *trade* of all nations. It is clear, therefore, that from the very beginning, freedom of fluvial navigation has been understood as an element of international trade, and that it was never complete in itself in the sense of freedom of movement. This close, one might almost say, indissoluble link between navigation and trade appears again in Article 109 of the Final Act of Vienna: “Navigation shall be entirely free and shall not in respect to commerce

be prohibited to anyone; it being understood that the regulations established with regard to the police of this navigation shall be respected, as they will be framed alike for all, and as favourable as possible to the commerce of all nations." And the three articles which follow deal with navigation duties levied upon the *goods*. It is this freedom of *commercial* navigation which the General Act of Berlin of 1885, as stated in its Preamble, provided also for the Congo and its tributaries; and there is nothing to show that the authors of Article 5 of the Convention of Saint-Germain intended to alter that situation.

What are now the obligations of the riparian States of an international river with regard to freedom of navigation? The Belgian Agent stated them very clearly at one moment during the proceedings, when he said that: "Freedom of navigation implies the taking of all action—for instance repairs and maintenance works—and abstention from any action—for instance the creation of difficulties or obstacles—in so far as this is necessary to render this freedom effective." (Belgian Rejoinder, para. 32.) In the present case we are only concerned with the second aspect of these obligations: the abstention from any action which might impede the effective freedom of navigation.

Some of the acts impeding the freedom of commercial navigation are expressly named in Article 109, and the following articles, of the Final Act of Vienna, and in the subsequent fluvial conventions. They are, in part, acts which are perfectly lawful in themselves, but would become unlawful if applied in such a way as to cause impediments to free navigation. Thus Article 115 of the Final Act of Vienna lays down that: "Regulations shall be established to prevent officers of the customs, in the exercise of their functions, throwing obstacles in the way of navigation." And these prohibited impediments to navigation are not solely acts calculated to destroy a shipping business—which would mean that a State might lawfully do anything to the detriment of such a business so long as it allowed it to exist; for it is, on the contrary, the duty of the riparian States of an international river to encourage and promote navigation. Thus, according to Article 109, the regulations for the policing of navigation must be "as favourable as possible" to the trade of all nations; and according to Article 111 the tariffs for navigation duties levied on cargoes must be prepared in such a manner as "to encourage commerce by facilitating navigation". In fact, it is not sufficient that the riparian States of an international river should abstain from acts which impede the free movement of shipping to such an extent that the shipping firm has to abandon its fluvial transport business. The impediment comes under the prohibition at an earlier

stage, namely as soon as freedom of navigation ceases to be effective. It is purely a question of fact whether, in a given case, the effective freedom of navigation has, or has not, been annihilated; it may not always be easy to decide, but a Court must expect to find itself often confronted with difficult questions of fact.

If all acts of a riparian State which result, in a given case, in putting an end to effective freedom of navigation, are prohibited, why should it be more lawful for a riparian government to take measures which favour one of the two purely shipping enterprises operating on an international river, to such a degree that the other enterprise, not only suffers, but is driven out of business? That is the action which the British Government accuses Belgium of having taken, describing it, very justly, as a virtual monopoly, and it seems clear that, if it were proved that the freedom of commercial navigation to which Mr. Chinn is entitled has ceased to be effective in consequence of the Belgian Government's measure of June 20th, 1931, the reply to the first point in Article 1 of the Special Agreement should also be in the affirmative, having regard to Article 13 of the General Act of Berlin, which, as regards legal situations such as that existing in the present case, is reaffirmed by Article 5 of the Convention of Saint-Germain. While it is beyond doubt that a riparian government is under no obligation to obtain customers for a foreign shipping enterprise, it is also true that it is not entitled to deprive the foreign enterprise of its customers by conferring a virtual monopoly on another fluvial transport concern.

The foregoing observations suffice to show that the Belgian contention to the effect that the measure of June 20th, 1931, could in no case be in conflict with freedom of navigation is arbitrary. When paragraph 30 of the Belgian Rejoinder declares that the two separate spheres of the management of the national fluvial shipping industry and of the régime of navigation have always been recognized as distinct in practice and jurisprudence, one is constrained to ask if that statement is really in line with the facts.

In any case, it is necessary to look again closely into this doctrine of the two separate spheres.

Are they, even according to the Belgian Agent's own explanations, as distinct as he affirms? We learn from the pleadings on the afternoon of October 24th, 1934, that fiscal laws may put obstacles in the way of navigation, and therefore those laws belong to the sphere of navigation ("a fiscal régime incompatible with the idea of freedom would also be contrary to this freedom"). Again, we are told in these pleadings that fiscal laws belong definitely to the other sphere, that of the management of the national fluvial shipping industry. ("In

this sphere of management, there is a large number of measures which it"—i.e. the State—"may take. Its fiscal legislation may be more or less burdensome.") It follows that the important subject of fiscal legislation belongs to both of these spheres, which Belgium seeks to separate from one another. This being so, the separation seems to lose much of its distinctness, and the question again arises: Why should a measure taken by a riparian government, as a consequence of which measure a fluvial shipping business is annihilated, not belong, also, to the régime of navigation?

But there is more. In order to construct a sphere of the management of the national fluvial shipping industry, distinct from the sphere of navigation, it was necessary to keep the latter sphere as small as possible. The Belgian argument seeks to arrive at this result by relying on the conception of navigation which it alleges that the Court laid down in its Advisory Opinion on the jurisdiction of the European Danube Commission between Galatz and Braila. But in doing so, the Belgian argument seems to lose sight of the fact that the Opinion—which related, *inter alia*, to the limits of the Commission's competence—turned chiefly on the question how far navigation extends, and it held, in this respect, that navigation is practised not only on the river itself, but also in ports. It was solely the territorial aspect of navigation which it was desired to bring out in the Opinion, and the other aspects could be neglected. The British Reply points this out, quite correctly, in paragraph 45, and the Belgian Rejoinder seems to admit it, by its opening sentence in paragraph 33. However, in his pleadings, the Belgian Agent again recurred to the Advisory Opinion in the Danube case.

While the Belgian arguments seek to restrict the conception of navigation by adducing this Advisory Opinion, which is not relevant, they endeavour to restrict the conception of freedom of navigation by adducing Article 109 of the Final Act of Vienna of 1815. According to paragraph 39 of the Belgian Counter-Memorial, the above-mentioned Article has already indicated "the scope of the freedom of navigation recognized on the waterways to which the Act relates: it is the freedom which consists in immunity from exclusion by a sovereign prohibition". However, in paragraph 32 of the Belgian Rejoinder, which has already been referred to, the sphere of navigation is singularly enlarged. The above-mentioned statement in the Counter-Memorial is relegated to the plane of "reflections offered by way of illustration" and needing to be supplemented by stating that navigation comprises "the taking of all action, for instance repairs and maintenance works, and abstention from any action, for instance the creation of difficulties or obstacles, in so far as this is

necessary to render this freedom effective". As has already been said, this supplementary explanation is correct. However, when it is kept in mind that the Final Act of Vienna does not speak of navigation in its purely nautical aspect, as an "object in itself", but of navigation in its commercial aspect, the supplementary explanation in the Belgian Rejoinder necessarily implies that the régime of navigation comprises the act of the riparian government by which the fluvial shipping industry of a private individual is extinguished, as, in the British Government's submission, happened in the case of Mr. Chinn.

The judgment recognizes that "freedom of navigation and freedom of commerce are, in principle, two different things". Nevertheless the judgment holds that, in the present case, there is no need to consider freedom of navigation and freedom of trade separately. The undersigned cannot agree with this view, and sees no reason in the present case for departing from the general rule which is recognized, quite correctly, in the judgment. If the Belgian Government's argument is that freedom of fluvial navigation merely signifies freedom of movement for ships, leaving the commercial aspect out of account, the judgment, in the present case, adopts a diametrically opposite standpoint, and interprets freedom of fluvial navigation by the provisions relating to the liberty of commerce. The truth lies mid-way between the two standpoints: freedom of navigation certainly possesses a commercial aspect; but it is an independent notion, and is not determined by the provisions relating to freedom of trade.

If, in a given case, in order to appraise the commercial aspect of the principle of freedom of fluvial navigation, reliance is placed on other treaty clauses concerning freedom of trade, it must be admitted that, if there exist no clauses of that nature—that is to say, if freedom of trade is not provided for in a treaty stipulation—the commercial aspect of freedom of fluvial navigation is reduced to nothing at all. Such a consequence should alone be sufficient to counsel the greatest prudence in this question.

The contemplated hypothesis is moreover by no means a *casus non dabilis*. It would be easy to mention international rivers whose navigation act prescribes freedom of navigation without there being, either in the act itself or in any other convention, any clause regarding freedom of trade. If the reasoning of the judgment were correct, freedom of navigation would thus be reduced to freedom of movement. The reasoning amounts to the interpretation of an article concerning freedom of navigation—a conception well known in international fluvial law—in the light of other factors belonging to the domain of freedom of trade which may enter into account to an extent

varying from insignificance to decisive importance. The principle of freedom of navigation on international rivers, which was laid down at Vienna, reasserted at Berlin and not abandoned at Saint-Germain, would thus become a very uncertain conception.

An interpretation leading to such consequences cannot be sound.

It would, in fact, be more correct to regard freedom of navigation on international rivers as a principle having an existence of its own independently of what may or may not be said regarding freedom of trade by other treaty provisions binding the riparian States. The idea of the law of international rivers, as developed in a large number of conventions, is that, on certain waterways of importance for international trade, there should be freedom of navigation from the commercial standpoint also; one characteristic feature of this freedom of navigation is precisely that it is independent of what may be the law in other parts of the territory of States through which the international river passes.

This is also the case as regards the Congo. When the Conference of Berlin elaborated an international statute for the Congo Basin, it dealt with the matter from different aspects: freedom of trade, régime for native races, neutralization, a navigation act for the Congo, its tributaries, etc. As a result there has been some overlapping. Thus navigation on the Congo and its tributaries is already mentioned in Article 2 of Chapter I of the General Act. But the freedom of navigation prescribed in Article 13 retains precisely the same independent value as it possesses in many other conventions concerning navigation on international rivers. And there is nothing to indicate that the same does not hold good as regards Articles 5 to 9 of the Convention of Saint-Germain.

From the foregoing it follows that, if it were established that the measure taken by the Belgian Government on June 20th, 1931, had the effect of concentrating in the hands of Unatra the fluvial transport business by rendering it commercially impossible for Mr. Chinn—the only ship-owner on the river who, apart from Unatra, only carried goods belonging to others—to engage therein, that measure would be inconsistent with the right of entirely free navigation conferred on Mr. Chinn by Article 13 of the General Act of Berlin, which is reaffirmed as regards legal situations such as that existing in the present case by Article 5 of the Convention of Saint-Germain. The measure would even constitute a characteristic case of infringement of the freedom of fluvial navigation.

Nevertheless, the allegations of the Government of the United Kingdom—that it was commercially impossible for Mr. Chinn to carry on his transport business and that this

was a consequence of the measure taken by the Belgian Government on June 20th, 1931—have not been established. The Government of the United Kingdom has certainly submitted a considerable number of figures and statistics concerning on the one hand the quantities of goods carried on the Congo before and after the coming into force of the measure of June 20th, 1931, on July 1st, 1931, and, on the other hand, the distribution of shipping on the Congo amongst the various transporters before and after July 1st, 1931, etc. These figures and statistics tend to show that the measure taken by the Belgian Government gave Unatra a virtual monopoly preventing Mr. Chinn from carrying on his river transport business.

On the other hand, the Belgian Government has not confined itself to maintaining that the measure of June 20th, 1931, fell within the sphere of the management of the national fluvial shipping industry and was not therefore inconsistent with the conventional freedom of navigation, which appertains to the quite distinct sphere of the régime of navigation; it has also produced a considerable quantity of figures and statistics tending to show that Mr. Chinn might well have carried on his river transport business after the coming into force of the measure of June 20th, 1931, on July 1st, 1931.

It is clear that the course of events subsequent to this measure cannot be consistent with the assertions of both Parties which contradict each other practically on every point.

In these circumstances, the Agent for the United Kingdom, at the hearing on October 23rd, 1934, suggested that the Court should exercise the powers possessed by it, and order an enquiry into the facts. The Belgian Agent, at the same hearing, observed that the Court could under its Statute comply with the wish of the Agent for the United Kingdom, and he left the matter to the Court.

It is to be noted that Article 50 of the Statute does in fact confer on the Court power at any time to entrust any individual, body, bureau, commission or other organization that it may select with the task of carrying out an enquiry or giving an expert opinion. In the present case, it would seem that there were several reasons in favour of such an enquiry. According to the terms of the first question in Article 1 of the Special Agreement, the Court is asked to have "regard to all the circumstances of the case". These words are very rightly inserted in a case which, like the present, depends to such an extent upon an appraisal of the facts; indeed, there has never been a case before the Court in which the facts have been disputed to the same extent.

Furthermore, the Court is not tied to any system of taking evidence, whether proceedings are begun by Special Agreement or by Application. Its task is to co-operate in the objective

ascertainment of the truth. Of course, it behoves the parties to a Special Agreement as far as possible to produce proof in support of their statements—if for no other reason than because it is to their interest—and the Governments concerned have not omitted to do this. But when one party has done its best to produce proof of its assertions and admits that perhaps it has not succeeded, and suggests that the Court should apply Article 50 of the Statute, the Court must have very strong reasons for not adopting this course, more especially if, as in the present case, the facts to be established all transpired outside the territory of the Party adducing them. The Court cannot omit to use any means which may enable it to ascertain the objective truth; as regards the obtaining of evidence, the Statute provides that the Court shall take active steps and not adopt a passive attitude.

*

For the foregoing reasons, the undersigned cannot concur in the judgment of the Court.

(*Signed*) V. EYSINGA.